

		Attorney Rodriguez is ordered to give notice of this ruling.
6.	<i>Contreras vs. Ace Restoration & Construction, Inc.</i> 2022-01247671	Before the court is the continued hearing on the unopposed motion of plaintiff Carla Contreras (Plaintiff) to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6. This motion originally came on for hearing on August 20, 2026, prior to which the court posted a tentative ruling to grant the motion, in part. Although defendants Ace Restoration & Construction, Inc., Cheree Nichelle Ray, and Shelby Lynn Cordova (collectively, Defendants) did not file any opposition, defendants Ray and Cordova appeared at the hearing. They asserted, although they had missed some payments, they intended to perform and Plaintiff had not properly credited them for all payments. Based on their request, the court continued the hearing to today's date to provide Defendants an opportunity to oppose the motion and present evidence to support their claims. As stated in the Minute Order from that hearing (ROA234), the court ordered Defendants to file any written opposition to the motion not later than September 1, 2026. The court also explained defendants Ray and Cordova could represent themselves by defendant Ace Restoration & Construction, Inc. could only appear through counsel. Despite giving Defendants this opportunity, they failed to file any opposition or declarations. In the instant motion, Plaintiff seeks an order enforcing the settlement agreement entered into between Plaintiff and Defendants by entering judgment against Defendants and compelling them to execute valid and properly notarized documents including the required Deed of Trust, appointing an elisor to execute such documents if Defendants fail to comply, and awarding attorney fees and costs against Defendants. As more fully set forth below, the motion is GRANTED. During 2024 when the parties' entered into the settlement agreement and Plaintiff dismissed this action, Code of Civil Procedure section 664.6, subdivision (a), stated, "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

		Here, Plaintiff has shown the parties entered into the settlement agreement and agreed it would be enforceable pursuant to section 664.6. Moreover, the parties stipulated and the court agreed to retain jurisdiction to enforce the agreement. Plaintiff also has shown Defendants breached the settlement agreement. Defendants have not filed any opposition to this motion. The court therefore finds Plaintiff satisfied the requirements of section 664.6 and Defendants breached the agreement warranting this motion to enforce the settlement. Based on the foregoing, the motion is GRANTED and the court will enter judgment against Defendants based on the parties' settlement agreement. Plaintiff's counsel is ordered to submit a proposed judgment for the court's signature. Notwithstanding the foregoing, Plaintiff's request for an award of attorney fees and costs is DENIED WITHOUT PREJUDICE. Although the parties' settlement agreement authorizes an award of attorney fees for enforcing its terms, the motion does not request any specific amount of attorney fees or costs nor does it provide any evidence to support an award in any particular amount, such as a declaration describing the work performed and hourly rates or billing statements. Plaintiff's counsel is ordered to give notice of this ruling.
7.	<i>Feng vs. Chen</i> <i>2026-01593722</i>	Before the Court is the petition by petitioner Jing Feng (Petitioner) for release of mechanic's lien. As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE. Civil Code section 8486, subdivision (b), states, "The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108." Cal. Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days before the hearing. Here, there is proof of service on file for either the petition or notice of hearing. Moreover, the petition is deficient as it fails to include the information required by Civil Code section 8484, which states as follows: